

**HOUSE . . . . . No. 559****The Commonwealth of Massachusetts**

PRESENTED BY:

***Mindy Domb and Priscila S. Sousa****To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying resolve:

Resolve providing for an investigation and study by a special commission relative to the consumer impacts of electronic textbooks.

PETITION OF:

| NAME:                         | DISTRICT/ADDRESS:                        | DATE ADDED:      |
|-------------------------------|------------------------------------------|------------------|
| <i>Mindy Domb</i>             | <i>3rd Hampshire</i>                     | <i>1/15/2025</i> |
| <i>Priscila S. Sousa</i>      | <i>6th Middlesex</i>                     | <i>1/15/2025</i> |
| <i>Natalie M. Blais</i>       | <i>1st Franklin</i>                      | <i>3/17/2025</i> |
| <i>Joanne M. Comerford</i>    | <i>Hampshire, Franklin and Worcester</i> | <i>3/17/2025</i> |
| <i>James B. Eldridge</i>      | <i>Middlesex and Worcester</i>           | <i>3/17/2025</i> |
| <i>Natalie M. Higgins</i>     | <i>4th Worcester</i>                     | <i>3/17/2025</i> |
| <i>Patrick Joseph Kearney</i> | <i>4th Plymouth</i>                      | <i>3/26/2025</i> |
| <i>Mary S. Keefe</i>          | <i>15th Worcester</i>                    | <i>4/1/2025</i>  |
| <i>Meghan K. Kilcoyne</i>     | <i>12th Worcester</i>                    | <i>6/17/2025</i> |
| <i>Michael O. Moore</i>       | <i>Second Worcester</i>                  | <i>3/25/2025</i> |
| <i>Bruce E. Tarr</i>          | <i>First Essex and Middlesex</i>         | <i>4/2/2025</i>  |
| <i>Marjorie C. Decker</i>     | <i>25th Middlesex</i>                    | <i>9/11/2025</i> |
| <i>Vanna Howard</i>           | <i>17th Middlesex</i>                    | <i>6/25/2025</i> |
| <i>Margaret R. Scarsdale</i>  | <i>1st Middlesex</i>                     | <i>9/21/2025</i> |

# HOUSE . . . . . No. 559

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By Representatives Domb of Amherst and Sousa of Framingham, a petition (accompanied by resolve, House, No. 559) of Mindy Domb and Priscila S. Sousa for an investigation and study by a special commission (including members of the General Court) relative to the consumer impacts of electronic textbooks. Education.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
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Resolve providing for an investigation and study by a special commission relative to the consumer impacts of electronic textbooks.

1            **Resolved**, that a special commission is hereby established to study the consumer impacts  
2 of electronic textbooks, including, but not limited to, the following: (1) identifying the benefits  
3 and advantages of electronic textbooks to student consumers, (2) identifying the impact and  
4 disadvantages of electronic textbooks to student consumers, including methods used to determine  
5 the cost of, and limit their resale, sharing, and renting; the consequences for consumers of the  
6 single-user limited access model related to electronic textbook availability, and the prevalence of  
7 limiting physical print production to limit access to consumer alternatives, (3) identifying the  
8 ways in which electronic textbook contracts affect and limit consumer choice in accessing  
9 educational materials, (4) evaluating the clarity of electronic textbook contracts in providing  
10 essential factual consumer information around actual costs and savings, and (5) evaluating the  
11 impacts of participation quotas and institutional incentives, reimbursements, and other methods  
12 used in electronic textbook contracts with institutions of higher education on the availability and  
13 awareness of options for student consumers and on the finances of the institution.

Resolved, the special commission shall consist of: 1 person shall be the commissioner of higher education or a designee with expertise on electronic and open educational resources, who will act as chair of the commission; 1 of whom shall be a representative of a student advocacy group, 1 of whom shall be a representative of a library who has experience with and knowledge of electronic textbooks or open educational resources from a Massachusetts public university, 1 of whom shall be a representative of a library who has experience with and knowledge of electronic textbooks or open educational resources from a Massachusetts community college, 1 of whom shall be a representative of a library who has experience with and knowledge of electronic textbooks or open educational resources from a Massachusetts state university, 1 of whom shall be a faculty member from a Massachusetts public university who has educator experience with using electronic textbooks or open educational resources, 1 of whom shall be a faculty member from a Massachusetts community college who has educator experience with using electronic textbooks or open educational resources, 1 of whom shall be a faculty member from a Massachusetts state university who has educator experience with using electronic textbooks or open educational resources, 1 of whom shall be a representative from the electronic textbook industry, 1 of whom shall be a representative from a higher education-based financial aid office or basic needs office who is knowledgeable on college affordability and student financial challenges, 1 of whom shall be a member of the House of Representatives appointed by the speaker of the House, and 1 of whom shall be a member of the Senate appointed by the Senate President.

Said commission will ensure that its meetings shall be open to the public, notes will be taken and made available. The appointment of the commissioners shall occur within 30 days after the effective date of this resolve. The commission shall convene its first meeting no later

37 than 45 days after the bill's enactment. The commission shall meet as often as needed to  
38 complete its report.

39 Said commission shall report to the clerks of the house of representatives and senate, the  
40 chairs of the joint committee on consumer protection and professional licensure, and the chairs  
41 of the joint committee on higher education the results of its investigation and its  
42 recommendations, together with drafts of proposed legislation or regulations necessary to carry  
43 its recommendations into effect within 18 months of enactment.

44 The special commission shall dissolve 30 days after the submission of the report, unless  
45 upon a two-thirds vote of the Commission, a continuance is deemed necessary to complete the  
46 purpose of the Commission. The time frame of said continuance must be specified in the motion  
47 to extend time of operation.